

INTA Practice Guides Report

Trademark Cancellations Guide

Argentina

SINGLE JURISDICTION REPORT

CONTRIBUTOR(S)

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks. This jurisdiction is not a member of the Madrid System; we have no international marks. This jurisdiction is not a member of the European Union; we have no European Union Trade Marks.
- "Cancellation" is not defined by legislation. Cancellation may refer to both nullity and cancellation for lack of use. Section 24 of the Argentine Trademark Act defines the basis for obtaining the nullity of a trademark and Section 26 refers to cancellation for lack of use.
- Cancellation actions can be filed online at the following URL: <https://portaltramites.inpi.gob.ar/>

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark is misleading and/or deceptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication; the mark is functional; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention; the mark includes a badge or emblem of particular public interest; the mark is used in a misleading and/or deceptive manner; the mark is prohibited in this jurisdiction; the application for or registration of the mark was made in bad faith; other absolute grounds, i.e., grounds that relate to the inherent registrability of a mark: the name, pseudonym, or portrait of a person without their consent or that of their heirs up to the fourth degree (i.e., the fourth generation); the names of activities, including firm names, that describe an activity may not be registered to distinguish products. Nevertheless, initials, words, and other signs having distinctive capacity that form part of such names may be registered to distinguish products or services.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings: there is an earlier application or registered mark; there are earlier use-based rights in an unregistered mark; the application for or registration of the mark was made in bad faith; the mark is covered by a copyright; the mark is notorious or well known (Article 6bis of the Paris Convention); the mark is a trade or business name; the mark is a domain name.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- Other than the absolute or relative grounds listed above and/or the non-use grounds listed below, there are no other grounds that may be raised in cancellation proceedings.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings.
- In relation to cancellation for non-use, "use" is defined as: Article 5 of the Argentine Trademark Law provides that a mark shall be registered for a period of 10 years. The mark may be renewed indefinitely for equal periods if it has been used within the five years preceding each renewal date in the commercialization of a product or the rendering of a service, or as part of the designation of an activity.
- The definition of "use" provided above is derived from statute, regulation or administrative rule: Article 5 of the Argentine Trademark Law.
- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor.
- The time frame within which a mark must be used in order to avoid cancellation runs from: other: Article 26 of the Argentine Trademark Law as amended by Decree 27/2018 states that "the cancellation of a trademark shall be declared when it has not been used in the country within the five (5) years preceding the date on which such claim is filed, unless there are reasons of force majeure."
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: five years preceding each renewal due date (Article 5 of the Argentine Trademark Law).
- The consequences of use being interrupted are: If the trademark is not used during the five years prior to each expiration date, it can be declared lapsed (Articles 5 and 26 of the Argentine Trademark Law).

II. Grounds — E. Multiple Grounds

- An application for cancellation may be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds).
- The advantages of filing an action based on multiple grounds are as follows: There is a greater opportunity for a successful outcome.
- If an action is based on multiple grounds and the action could be disposed of on one ground, the other grounds will nevertheless be considered.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the proceedings.

III. Forum — A. Forum

- The forum for cancellation proceedings is the same regardless of the grounds on which the proceedings are brought. Cancellation proceedings on all grounds may be brought before the following administrative body: Instituto Nacional de la Propiedad Industrial (National Institute of Industrial Property).
- The administrative body/bodies listed above is/are not independent of the trademark registry.

IV. Standing — A. On Basis of Grounds

- The following parties have legal standing to apply for cancellation, regardless of the grounds for cancellation: any person. Legal interest is not required. other: In addition, the National Institute of Industrial Property may require cancellation ex officio.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a “person” is defined as: both natural and juridical persons.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may apply jointly for cancellation based on: non-use grounds.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may be sought by a defendant.

V. Representation — A. Qualifications

- The applicant can choose whether to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings. Appointment of a representative is not mandatory.
- The representative must be domestic, i.e., with an office in the jurisdiction.
- Additional professional qualifications required of a representative in cancellation proceedings are as follows: The representative must be an attorney at law.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney must be provided to a representative by an applicant in cancellation proceedings.
- To validate the power of attorney, the following notarization/legalization requirements must be met in cancellation proceedings: The power of attorney must be duly notarized and further legalized before an Argentine consulate or by apostille.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may be commenced before a mark is registered, regardless of the grounds on which they are based.

VI. Commencement — B. Deadline

- There is never a deadline for bringing cancellation proceedings, regardless of the grounds for cancellation.

VI. Commencement — C. Statute of Limitations

- The following statute of limitations or acquiescence provisions will prevent cancellation, regardless of the grounds for cancellation: Use in connection with a product or service covered by the trademark registration or goods or services related to those covered by the challenged registration or as part of a business or trade name that identifies an activity related to goods or services protected by the trademark registration.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible, regardless of the grounds for cancellation. Article 26 of the Argentine Trademark Law as amended by Decree 27/2018.
- For single-class registrations, it is possible to apply for cancellation of some of the goods within the single class. Multi-class registrations are not permitted in this jurisdiction.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: usually between four and five years.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: between 40 and 60 days, according to the Code of Civil and Commercial Procedure.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees; statutory or regulatory fees; administrative costs relating to power of attorney; administrative costs relating to legalization and/or notarization.
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation.
- If an application for cancellation is based on multiple grounds, no additional official fees are due.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- The following documents must be notarized in cancellation proceedings, regardless of the grounds for cancellation: all relevant proof must be notarized.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings are the same, regardless of the grounds for cancellation and are as follows: all relevant documentary proof, including, but not limited to, the power of attorney; all evidence under control or administered by the defending party.

XI. Discovery — A. Interrogatories

- No party may request that any other party answer written questions, under oath ("Interrogatories").

XI. Discovery — B. Document Requests

- Any party may request that any other party produce documents in response to written document requests ("Document Requests").
- The general rules concerning the timing, number and scope of Document Requests are: as per the Code of Civil and Commercial Procedure.
- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the procedure by which the requesting party can compel compliance is as follows: If the requested party fails to provide documents in response to a document request, the requesting party has to reiterate said request as many times as necessary. The requested party may reply that they are unable to provide the requested information/documentation. In this case, there will not be a presumption in favor of the requesting party. If the requested party refrains from answering, the requesting party may ask the judge to sanction the requested party.

- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the consequences are as follows: The fact intended to be "proven" is assumed to be true.
- There are no grounds on which the requested party may justify its refusal to produce documents in response to Document Requests, in whole or in part.
- Documents obtained in response to Document Requests may be used as evidence in the action.

XI. Discovery — C. Depositions

- Any party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions").
- The rules concerning the timing, location, subject and permitted scope of inquiry of a Deposition are as follows: As defined in the Code of Civil and Commercial Procedure, the witness makes a statement on the facts in a hearing scheduled for that purpose. The scope of inquiry must be strictly connected to the matter discussed in the file.
- If the requested party fails to provide a requested witness for a Deposition or fails to answer certain questions during a Deposition, the procedure by which the requesting party can compel compliance is as follows: The witness can be summoned by the police.
- If the requested party fails to provide a requested witness for a Deposition or fails to answer certain questions during a Deposition, the consequences are as follows: The party can lose the trial for its lack of evidence.
- The grounds on which the requested party may justify its refusal to appear for or to answer questions in a Deposition, in whole or in part, and the circumstances in which these grounds are applicable are as follows: illness or disability.
- Answers provided during Depositions may be used as evidence in the action.

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: As a general rule, the party that states a fact has the burden of proof for that fact.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory.
- The deadline for the applicant to submit written arguments is determined by statute, rule or regulation and is: as determined by the Code of Civil and Commercial Procedure.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are not available to the applicant to file written arguments.
- Extensions of time are not available to the respondent to file written arguments.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings.
- The determination of whether oral hearings will take place is made by: the court.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: Documentary evidence and expert testimony may be included with the brief of complaint and all other necessary documentation that can be produced for the matter.
- Evidence must be submitted to: National Institute of Industrial Property.
- Evidence must be submitted by the following deadline: as requested.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: All types of evidence are possible to submit for these matters.
- Evidence must be submitted to: the National Institute of Industrial Property.
- Evidence must be submitted by the following deadline: The deadline is fixed by law.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: All types of evidence can be submitted.
- Evidence must be submitted to: the National Institute of Industrial Property.
- Evidence must be submitted by the following deadline: as requested.

XV. Evidence — E. Applicant's Proof of Use

- The applicant must submit proof of use of the mark on which the cancellation is based.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time for the applicant's submission of evidence are not possible.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: If the evidence constitutes a "new fact," it should be offered prior to the commencement of the evidence stage of the proceedings.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is mandatory. If the party does not answer, it will lose the trial.
- Evidence in reply must be submitted by the following deadline: within 15 working days of notification of the complaint.
- Extensions of time for the respondent's submissions are not available.
- Petitioner cannot demand that respondent provide additional particulars relating to the respondent's proffered evidence.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; evidence of turnover; use of the mark on the Internet;
- In assessing whether "use has been made," sufficient use is demonstrated by: Use needs to be commercial in the jurisdiction where such use is being contested. Sufficient use is not determined by law and may vary from case to case.
- The following factors are considered when determining whether a mark has been sufficiently used: the nature of the goods or services at issue; market

characteristics; the scale and frequency of use of the mark; export use.

- The respondent cannot demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: Upon request of the petitioner, the court, other judicial tribunal or administrative body must enter a default judgment in favor of the petitioner.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: Acquired distinctiveness can be assessed by looking at a large number of respondents to a survey who recognized the sign as a trademark.

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: there were force majeure reasons.

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision may include a formal monetary award against the losing party, regardless of the grounds for cancellation. The losing party may be deemed to pay costs.
- Monetary awards are based on: actual losses.
- The amount of a monetary award is likely to be influenced by the following circumstances: any circumstance that the judge may consider relevant at the moment of fixing the monetary award; for example, but not limited to, that the application or registration was made in bad faith or would lead to the unjust enrichment of the applicant/registrant; the efforts and performance of the attorney representing the winning party; the cost of the intervention of technical experts.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is entitled to recover attorney fees in cancellation proceedings, regardless of the grounds for cancellation.
- The award of attorney fees in cancellation proceedings is: mandatory.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid against all third parties, regardless of the grounds on which the proceedings were brought.
- A decision ordering cancellation of a mark takes effect: from the moment the decision becomes final.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application, regardless of the grounds for cancellation.
- Withdrawal of a cancellation application does not require the approval of the court, other judicial tribunal or administrative body; termination is automatic.
- Withdrawal of a cancellation application based on any grounds requires the approval

of the other party to the proceedings, regardless of the grounds for cancellation.

- When cancellation applications are withdrawn, the cost of the proceedings is borne by: the party that stops the proceedings. This may be different if the parties reach an agreement.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: within five working days of notification of the verdict.

XIX. Appeals — B. Forum

- The court, other judicial tribunal or administrative body that hears an appeal is determined by the grounds on which the cancellation proceeding was brought. For cancellation proceedings brought on absolute grounds, appeals are heard by the following court or other judicial tribunal: the Federal Courts of Appeals.

XIX. Appeals — C. New Evidence

- New evidence may be submitted on appeal.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: approximately USD 50 per mark.
- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision.
- An appeal decision cannot include a monetary award against the losing party if the earlier decision did not include a monetary award.

XIX. Appeals — E. Scope

- An appeal consists of a complete rehearing of the matter. In an appeal, the prior judgment is reviewed.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: the Supreme Court of Justice, provided that there is a federal cause or unjust action. Details regarding the deadlines and fees for further appeal are as follows: by the Supreme Court of Justice, on extraordinary appeal, within 10 working days of the notification of the verdict of first appeal; or by an appeal filed when a lower court judge improperly refuses the appeal, within five working days of the extraordinary appeal rejection, by depositing the equivalent in local currency of USD 5,000.
- There is no alternative procedure to an appeal.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, regardless of the grounds on which the cancellation proceedings were brought, if an applicant is successful in obtaining cancellation, the legal consequence is that: the mark is considered as having been validly registered until the date of the decision to

cancel the mark.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: The assignee does not retain any right in the assigned mark.
- The consequences for past licenses if a mark is cancelled are: The licensee does not retain any right in the licensed mark.
- The consequences for past contracts if a mark is cancelled are: The party that acquired the right does not retain any right.

XXI. Notification to TM Office — A. Notification to TM Office

- Following a decision to cancel a mark, the Trademark Office must be formally notified of the cancellation, regardless of the grounds on which the proceedings were brought. The following party has the responsibility to notify the Office: the winning party. The deadline to make the notification is: none.
- The consequences of failing to meet the deadline to notify the Trademark Office are: There is no deadline, but until the Trademark Office is notified of the cancellation, the registration remains in force.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- There are limitations as to when an application to register the mark can be refiled, depending on the grounds for the cancellation proceedings.
- There are no time limits for refile following the cancellation of a mark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: a trademark that distinguishes the goods manufactured and/or services rendered by social associations created for the development of the domestic economy. (Article 1 of the Collective Trademark Law (Law No. 26,355 of February 28, 2008), which was published in the Official Gazette on March 27, 2008.)
- There are certain unique provisions in the law of this jurisdiction in relation to the cancellation of collective marks on absolute, relative, non-use or other grounds, as follows: According to Article 11 of the Collective Trademark Law, "Notwithstanding the provisions of Law No. 22,362 and the Regulatory Decree of the Trademarks and Trade Names Law (Law No. 558/81) modified by Decree No. 1141/2003, with regard to the application for registration, the specific reason for nullity is the non-fulfillment of the requirement of Article 3 of the present Law; and the specific reason for refusal is that the regulations of use are contrary to law, to public order, to morals and good manners or are misleading about the collective character of the mark in question."

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: In Argentina, the same definition provided by WIPO applies: certification marks are usually given for compliance with defined standards. They may be used by anyone who can certify that the products involved meet certain established standards.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of certification marks.

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